

Shiv Lal v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 16 April 2011 · WRIT - C No. 21786 of 2011 · **Writ dismissed; relegated to clause 6.5 statutory remedy.**

HEADNOTE

Writ challenging recovery of electricity dues dismissed for statutory alternative remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. Disputed bills and arrears not decided; the consumer must challenge the bills after making the deposit required by the rules.

FACTUAL SUMMARY

The petitioner ran a flour mill. In October 2006 its electric motor caught fire. He applied on 9 November 2006 for temporary disconnection. On 13 February 2007 the Power Corporation disconnected supply and billed Rs.77,980 on meter reading up to January 2007, which he did not pay. Bills continued as permanent disconnection was not made. He admitted Rs.62,738 due when he sought temporary disconnection, but deposited nothing. He challenged recovery of Rs.1,00,030 and dues up to 31 December 2010.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

statutory alternative remedy for disputed bills

HOLDING

A consumer disputing electricity bills and arrears must pursue the statutory remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005, after making the deposit required by the rules; the High Court will not decide the disputed bills on a writ challenging recovery. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Writ challenging recovery of electricity dues dismissed for statutory alternative remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. Disputed bills and arrears not decided; the consumer must challenge the bills after making the deposit required by the rules. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM OF DISPUTED BILLS AND ARREARS

Court expressly declined to decide the question of disputed bills and arrears. ¶ 1